

Bharat Bhati v. State of U.P. & 2 Others

Allahabad High Court · Division Bench · 3 July 2018 · 2018 SCC OnLine All 3262 · Writ - C No. 22326 of 2018 · **Writ petition disposed of; petitioner relegated to file objections before the authority**

HEADNOTE

A writ against a show-cause notice / provisional assessment issued under Clause 6.8(B) of the U.P. Electricity Supply Code, 2005 is premature where the consumer has not yet filed his objection. The petitioner (an owner contending the premises were let out and that any theft was the tenant's) had ample opportunity to raise all his pleas — including that the property was tenanted and the assessment period wrong — before the appropriate authority. The Court directed that if the petitioner files his objection within 15 days, the authority must dispose of it by a speaking order in accordance with law after considering his pleas.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Writ against a Clause 6.8(B) show-cause / provisional assessment notice is premature

QUESTION

Should a writ be entertained against a Clause 6.8(B) show-cause/provisional assessment notice before the consumer has filed objections?

HOLDING

No. Such a writ is premature; the consumer has ample opportunity to take all his pleas — including tenancy of the premises and the correct assessment period — before the appropriate authority. On the consumer filing objections within 15 days, the authority must decide them by a speaking order in accordance with law. ¶ 2, 5

LIMITING FACTS

Provisional assessment notice of 6.6.2018 under Clause 6.8(B); the petitioner, an owner alleging the premises were tenanted to one Mohd. Raza, had not yet filed his objection.

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ against a Clause 6.8(B) show-cause/provisional assessment notice is premature; the consumer is relegated to file objections before the authority, which must decide by a speaking order. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — OWNER'S LIABILITY FOR A TENANT'S ALLEGED THEFT; THE ASSESSMENT PERIOD

Left to the authority on the consumer's objections; the Court expressed no view on whether the owner is liable or on the correct assessment dates. ¶ 3, 5